



FREE TEMPLATE • INDIE MUSIC INDIA

Producer Agreement (India)

A template agreement between an artist/label and a music producer for recording services. For reference and guidance only, consult a qualified entertainment lawyer before signing.

Understanding Producer Deals In India

Music producers in India work under a variety of arrangements. Before drafting any agreement, it is essential to agree on the fundamental structure:

Work-For-Hire

The producer is paid a flat fee for their services. They have no ownership of the master recording and no ongoing royalty. The artist/label owns 100% of the master. Most common for independent artists commissioning producers for specific tracks.

POINTS DEAL (Royalty Share): _____

The producer receives a percentage of master royalties ("points") in addition to or instead of an upfront fee. Typically 2-5% of master royalties. More common with established producers and label projects.

Co-Ownership

Producer and artist co-own the master recording. Unusual in India but relevant for true collaborative projects. Requires detailed legal documentation.

Publishing Credit

If the producer contributes to the melody or arrangement in a significant creative way, they may be entitled to a percentage of the composition (songwriting) credit. This must be agreed separately via the Co-Writer Split Sheet. A production fee does NOT automatically grant publishing credit.

Producer Agreement

This Producer Agreement ("Agreement") is made as of [DATE] between:

ARTIST / LABEL ("Artist"): _____

Name / Entity: _____

Address: _____

PAN Number: _____

And

Producer

Name: _____

Address: _____

PAN Number: _____

IPRS Membership No. (if applicable): _____

1. Services

1.1 The Producer agrees to produce the following recordings for the Artist:

Track 1: _____

Final / Working Title: _____ Delivery Deadline: _____

Track 2: _____

Final / Working Title: _____ Delivery Deadline: _____

1.2 Production services include: arrangement, programming, recording, and delivery of final mixed-ready stems/files in the agreed format.

1.3 Production does NOT include mixing and mastering unless specifically agreed below:

- Mixing included in this agreement
- Mastering included in this agreement

2. Deliverables

The Producer shall deliver: _____

- Fully mixed and mastered WAV files (24-bit / 44.1kHz)
- Unmixed stems (at ___-bit / ___ kHz)
- Project file (DAW format: Ableton / Logic / FL Studio / Pro Tools / other: _____)
- Individual instrument tracks exported

Delivery method: _____ (e.g., WeTransfer, Google Drive, hard drive) Delivery deadline: _____

3. Compensation

OPTION A, FLAT FEE (Work-for-Hire): _____

3.1 In full consideration for the services, the Artist shall pay the Producer a flat fee of INR _____ ("Production Fee") per track / for all tracks listed above.

3.2 Payment schedule: _____

- INR _____ on signing this Agreement (___%)
- INR _____ on delivery of first draft for review (___%)
- INR _____ on final delivery and approval (___%)

OPTION B, POINTS DEAL (Royalties): _____

3.1 The Artist shall pay the Producer: _____

- An advance of INR _____ against royalties;
- Producer points of ___% of the Artist's net receipts from the master recording(s) covered by this Agreement.
- "Net receipts" means monies actually received by the Artist from exploitation of the master recording(s) after deduction of distribution fees, mechanical royalty payments to co-writers, and applicable taxes.

Option C, Combination

3.1 Flat fee of INR _____ plus ___% producer points.

4. Gst And Tds

4.1 GST: Production services are subject to 18% GST. The Producer shall issue a GST-compliant invoice if GST-registered. The Artist shall pay GST on the invoice in addition to the Production Fee.

4.2 TDS: If the Artist (or their company) is making TDS-applicable payments under Section 194C, TDS at 1% (individuals/HUF) or 2% (companies) shall be deducted at source. The Producer's PAN number is required. Form 16A shall be provided within the prescribed timeframe.

5. Ownership Of Master Recording

OPTION A, Work-for-Hire: _____

5.1 The recordings produced under this Agreement are created as works made for hire. The Artist (or label) shall be the sole and exclusive owner of all copyrights in the master recordings.

5.2 The Producer waives all moral rights in the master recordings to the fullest extent permissible under the Copyright Act, 1957 (India).

OPTION B, Co-Ownership: _____

5.1 The Artist and Producer shall co-own the master recording(s) as follows: Artist share: _____% Producer share: _____%

6. Publishing / Composition Rights

6.1 This Agreement covers production services only. It does NOT grant the Producer any interest in the musical compositions (songwriting/publishing rights) unless separately agreed in a Co-Writer Split Sheet.

6.2 If the Producer contributed to the melody, arrangement, or lyrics in a manner that qualifies as authorship under Indian copyright law, a separate Co-Writer Split Sheet must be completed and signed by all parties.

7. Credit

7.1 The Artist shall credit the Producer as follows on all commercial releases: Produced by: [Producer Name]

7.2 The Producer's credit shall appear on: ☐ Physical releases ☐ Digital release metadata ☐ All promotional materials ☐ Music videos

8. Revisions And Approvals

8.1 The Artist shall be entitled to [___] rounds of revisions at no additional charge. 8.2 The Artist shall review and respond to each draft within [___] business days. 8.3 Additional revisions beyond the agreed number: INR _____ per round.

9. Governing Law

This Agreement shall be governed by the laws of India. Disputes shall be subject to the jurisdiction of the courts at [City], India.

Signatures

Artist

Signature: _____

Printed Name: _____

Date: _____

Producer

Signature: _____

Printed Name: _____

Date: _____

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